

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education ("the Convention") and the Recommendation against Discrimination in Education ("the Recommendation"), adopted by UNESCO's General Conference in 1960, are aligned with UNESCO's constitutional mandate to "advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social". The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of the Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of

Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Future of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which calls for the transformation of education systems to 'include everyone, regardless of circumstance, context or background'. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent intergovernmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that "*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*". Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

¹<https://www.unesco.org/en/right-education/evolving>

²<https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵[Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

⁶[Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration)

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires understanding education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders are needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

⁷<http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸<https://en.unesco.org/education/girls-women-rights>

⁹[UIS Statistics \(unesco.org\)](http://uis.unesco.org)

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Member States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name: Bulgaria

Organization or entity responsible for the preparation of the report: Ministry of Education and Science

Name of contact person: Alexandra Dimitrova - Head of the Department "Policies for Strategic Development", Directorate "Policies for Strategic Development, Qualification and Career Development"

Email and telephone number of contact person: al.dimitrova@mon.bg, +359 882 101 244

I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

The Convention on Combating Discrimination in the Field of Education was ratified by Decree No. 508 on 17.11.1962.

☐ No, not considering ratification. Please explain why:

n/a

- Is the Convention directly applicable in your country's domestic law?

☒ Yes ☐ No

¹⁰<https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

☒ No

☐ Yes: Have the provisions of the Convention been invoked?

☐ Yes ☐ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

*It further corresponds to the overall aspiration of SDG4 which aims to "**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**" by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²*

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☒ Yes ☐ No

- If yes, please provide reference:

Non-admission of discrimination and protection against it are guaranteed by the Constitution of the Republic of Bulgaria and the Law on Protection from Discrimination. In the field of education, the leading role is played by the Preschool and School Education Act and the Higher Education Act.

¹¹Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

¹² Which calls on states to "eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations".

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

☐ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

✓ In pre-primary education (including early learning and care)

✓ In primary education

Lower secondary education

✓ In technical and vocational education and training

✓ In higher education

✓ In adult education and alternative learning

- Please indicate the relevant legal provisions:

The Ministry of Education and Science (MES) implements the state policy in the field of education in accordance with the current regulations. With Art. 6, para. 2 the Constitution of the Republic of Bulgaria regulates equality before the law and the non-admission of any restrictions on rights or privileges based on race, nationality, ethnicity, gender, origin, religion, education, beliefs, political affiliation, personal and social status or property status.

According to Art. 4, paragraph 1 of the Law on Protection against Discrimination, any direct or indirect discrimination based on gender, race, nationality, ethnicity, human genome, citizenship, origin, religion or belief, education, beliefs, political affiliation, personal or public status, disability, age, sexual orientation, marital status, property status or any other characteristics established by law or in an international treaty to which the Republic of Bulgaria is a party is prohibited.

The principles and objectives of pre-school and school education laid down in the Law on Pre-school and School Education (LPSE) include the

¹³See: Article/Paragraph 1(1).

¹⁴Which calls on states to "substantially expand globally the number of scholarships available [...] for enrollment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programs".

¹⁵Constitution, laws, decrees, regulations, circulars, etc.

protection against discrimination: Art. 3, para. 1, item 3 (equal access to quality education), item 4 (equality and non-discrimination) and item 6 (humanism and tolerance) and art. 5, para. 1, points 7, 8 and 9, in which the goals for the formation of tolerance and the application of the principles of the rule of law and human rights and freedoms are laid down. Art. 12 of the Law regulates the right of every citizen to education.

According to the provisions of Art. 3 of the Law on Higher Education (LHE) secular higher education is independent of ideologies, religions and political doctrines and is carried out in accordance with universal human values and national traditions. Art. 4 of the Higher Education Act states that privileges and restrictions related to age, race, nationality, ethnicity, gender, social origin, political views and religion are not allowed in higher education, with the exception of the cases expressly stated in the regulations for the activities of the higher education institution in accordance with the specifics of the study and the future profession.

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

The implemented educational policies in the field of preschool and school education are regulated by the LPSE. Education is a national priority and as a process includes learning, upbringing and socialization. The educational process in the preschool and school education system, in accordance with Art. 3 of the LPSE is implemented in accordance with the principles of equal access to quality education and the inclusion of every child and every student, equality and non-discrimination in preschool and school education, humanism and tolerance.

Among the main goals of preschool and school education are the intellectual, emotional, social, spiritual-moral and physical development and support of each child and each student in accordance with their age, needs, abilities and interests, the formation of tolerance and respect for the ethnic, national, cultural, linguistic and religious identity of every citizen, the formation of tolerance and respect for the rights of children, students and people with disabilities.

The LPSE regulates non-discrimination in terms of equal access to quality education. The positions of pedagogical specialists are occupied by Bulgarian citizens who have acquired higher education in the professional field corresponding to the position according to the Classifier of Higher Education Fields and Professional Fields and professional qualification necessary for the performance of the relevant position. The requirements for occupying teaching positions cover the necessary competences as a set of knowledge, skills and attitudes, are defined in a professional profile and do not create prerequisites for discrimination.

According to Art. 3. of the Law on Higher Education (LHE), secular higher education is independent of ideologies, religions and political doctrines. It is carried out in accordance with universal human values and national traditions.

According to Art. 4 of the LHE privileges and restrictions related to age, race, nationality, ethnicity, gender, social origin, political views and religion are not allowed in higher education, with the exception of the cases expressly stated in the Regulations for the activities of the higher education institution in accordance with the peculiarities of training and the future profession.

☐ Policies, programs and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

✓ In pre-primary education (including early learning and care)

✓ In primary education

Lower secondary education

✓ In technical and vocational education and training

✓ In higher education

✓ In adult education and alternative learning

- Please provide details:

The MES implements the state policy in the field of education in accordance with the current regulations and the following strategic documents:

- National Development Programme “Bulgaria 2030“;
- Strategic Framework for the Development of Education, Training and Learning in the Republic of Bulgaria (2021 – 2030);

•Strategy for the Development of Higher Education in the Republic of Bulgaria 2021– 2030.

The implemented policies in the field of preschool and school education are aimed at effective socialization of children from early childhood, quality and accessible education and training, motivation to acquire key competences, promotion of innovation, qualification of pedagogical specialists, modernization of educational institutions, digitalization of education. They include measures aimed at developing the personal potential of children and students, discovering and developing their aptitudes and talents; involvement in extracurricular activities in the fields of natural and applied sciences, arts and sports. The policy scope also includes measures/activities related to the expansion of vocational education and training, promotion and expansion of lifelong learning opportunities; with support for inclusive education, reducing inequalities and promoting social inclusion. Policies to cover children and students subject to education, to prevent dropping out of school and to reduce the proportion of early school leavers are implemented through effective interaction between institutions and the joint efforts of pedagogical specialists, parents of children and students and all interested parties.

The priority policies for the development of the higher education system are aimed at improving access and increasing the share of higher education graduates, increasing the quality of higher education and its compatibility with European higher education systems, building a sustainable and effective relationship between higher education institutions and the labor market, aiming at successful implementation throughout life and achieving a dynamic match between the demand and supply of specialists with higher education.

☐Combating discrimination in terms of curriculum:

✓ In pre-primary education (including early learning and care)

✓ In primary education

Lower secondary education

✓ In technical and vocational education and training

✓ In higher education

✓ In adult education and alternative learning

- Please provide details:

The curricula do not contain negative stereotypes and prejudices. During their creation and optimization, the aspiration to include in them (in view of the specifics of the program) the cultural achievements and way of life of the various ethnic groups living in Bulgaria is noticeable. Issues related to human rights education are explicitly present in programs in the social sciences and humanities. There is such an increased emphasis in the curricula of civic education, philosophy, history and civilizations, geography and economics, man and society. For example, the concepts of discrimination, minority, xenophobia, constructive communication are included in the civic education program for tenth grade, and students are expected to acquire the ability to recognize cases of discrimination by different signs, as well as the attitude to evaluate the justification of the fight against discrimination.

In the other curricula, human rights are not so much present through topics and concepts, but they are woven into the expected results. In class and in extracurricular activities, there are also forms of civic education and human rights. For example, Bulgaria is the initiator of a student Olympiad in civic education, in which the problems of discrimination and human rights have their significant presence.

□ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

With the entry into force of the LPSE, primary education ends after the 7th grade and the primary schools established at the entry into force of the Law can be transformed into a new type - unified schools - after an analysis and opinion of the regional education department and a decision of the relevant municipal council. Certain municipal councils have taken advantage of this opportunity in their capacity as a financing body, mainly in relation to small settlements in the country, with the aim of:

- creating conditions for access to quality education - taking into account the propensity to travel and the risk of students from vulnerable groups dropping out, on the one hand, and on the other - the possibility of providing resources, material and personnel for education in the first high school stage;

- encouraging students to be included in the system of professional education, which should not limit the opportunities of professional schools established in their development to realize their admission plan.

Students in the unified schools after successfully completing the 10th grade receive a certificate of completion of the first high school stage with the 1st degree of professional qualification and have the opportunity to continue their education in the next level of professional qualification in the relevant professional classes in secondary schools and vocational high schools. Those students who do not wish to continue their studies in the second high school stage with the next level of professional qualification, have the opportunity to join the labor market in the studied profession.

The measures and policies in the field of preschool and school education, which are related to ensuring access to quality preschool and school education and are implemented by the MES, are also related to:

- the determination of central and protected kindergartens, parts of kindergartens and schools;
- the provision of free transport for children of compulsory preschool age and for students from I to XII grades inclusive from settlements where there is no kindergarten or school to the nearest kindergarten or school that conducts training in the relevant group or in the relevant class, and vice versa;
- the provision of free transport for students who are training to acquire a professional qualification, including during their practical training, and for these students the restrictions on studying at the nearest school have been removed and they have been given the opportunity to study at schools of their choice professional classes in the territory of the district in which they live or in a neighboring one.

These measures are fully aimed at reducing the share of students who are not covered and drop out of the education system, increasing the quality of education and the educational results of students, as well as motivating young people to continue their education through suitable professions and their inclusion in the labor market.

By determining the central institutions, favorable conditions are created for achieving the goals set in the current strategic framework for preschool and school education, related to increasing the scope of children and students and reducing the share of premature leavers in over 15% of kindergartens and in over 34% of schools across the country, and through the protected institutions in over 5% of kindergartens and over 6% of schools across the country, where over 3,000 children and over 10,000 students are educated.

The optimization of the school network and the network of kindergartens in recent years has put a large number of children and students at a disadvantage in terms of ensuring access to quality pre-school and school education. In this regard, numerous regulatory

changes have been made to ensure and facilitate access to pre-school and school education, as well as to promote training for the acquisition of a professional qualification, related to:

- Inclusion of 4, 5 and 6-year-old children in compulsory preschool age in school and municipal transport schemes;
- Provision of free transport for all students from I to XII grade inclusive, not only for students up to 16 years of age.
- Provision of additional timetables (courses) for the students, which are included in all-day organization of the school day;
- Provision of additional funds for students who are training to acquire a professional qualification, including during their practical training, and for these students the restrictions on studying at the nearest school have been removed and they have been given the opportunity to study at schools of their choice professional classes in the territory of the district in which they live or in a neighboring one.

MES supports municipalities in fulfilling their obligation to provide safe and reliable free transport for traveling children and schoolchildren, by annually purchasing and transferring for free use to local self-government bodies and/or schools motor vehicles to use in the organization of free transport for children and students, which comply with the provisions of art. 283, para. 2 of the LPSE.

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measurements:

- | | |
|--|--|
| ✓ Legislation provides for inclusive education for all | ✓ Multiple and flexible learning pathways ¹⁷ are provided for |
| ✓ Policy measures aim to enhance inclusion in education for all | |
| ✓ Teachers are trained on inclusive education ¹⁶ and to value diversity | |

¹⁶Teachers are prepared to teach all students (beyond just students with disabilities), equipping them with knowledge, values and attitudes that allow every student to succeed. See: [UNESCO policy paper](#) : Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

¹⁷Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through non-formal and informal education' ([Education 2030 Framework for Action](#) , para. 33). This may include student transfers between courses and institutions and various learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

✓ Initiatives to address discrimination and promote cultural diversity and mutual acceptance

☐ Other:

✓ Curricula and teaching methods are inclusive in design¹⁸

✓ Multilingual and intercultural education is supported

In Art. 32 – 32c of the Law on Vocational Education and Training Act (LVET) the following texts are written for students with special educational needs.

Art. 32. (1) For students with special educational needs, vocational education and vocational training is organized according to their respective disability.

(2) Vocational education or vocational training is organized for students with sensory disabilities in professions or in a part of a profession, the training and exercise of which are suitable for their health condition.

(3) Vocational training is organized for students with mental retardation in a part of a profession or in professions for the acquisition of the first degree of professional qualification.

Art. 32a. Vocational education or vocational training is organized for students with chronic diseases and physical disabilities in professions or in a part of a profession, the training and practice of which are suitable for their health condition.

Art. 32b. Vocational education and vocational training is provided for students from care homes for children deprived of parental care.

Art. 32c. Vocational education or vocational training in a profession or part of a profession is organized for students with deviant behavior in socio-pedagogical boarding schools and educational boarding schools.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

In the LPSE it is stipulated that education is a national priority, and the implementation of this priority is guaranteed by the application of principles, among which are: equal access and inclusion of every child and every student; equality and non-discrimination; preservation of cultural diversity and inclusion through the Bulgarian language; preservation and development of the Bulgarian educational tradition; humanism and tolerance; orientation to the interest and motivation of the child and the student, to the age and social changes in their life, as well as to their ability to apply the acquired competences in practice.

¹⁸In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

To ensure the right to education, MES implements measures in three main directions:

- outreach, retention and early-leaving prevention through the Outreach Mechanism;
- educational support for children and students for whom the Bulgarian language is not their mother tongue and/or who have gaps or encounter difficulties in learning the educational content through additional training in academic subjects; interests, career guidance and counseling, etc.;
- a supportive environment in educational institutions for children and students whose mother tongue is different from Bulgarian by appointing educational mediators and social workers to be involved in community work.

For schools that work under more specific conditions, it is legally stipulated to be able to organize the learning process with a small number of pupils in a class. Such are protected schools, schools with a concentration of students from vulnerable groups and schools with state-protected occupational specialties and with occupational specialties in which there is an expected shortage of specialists on the labor market. These schools also receive additional funding from the state budget in order to ensure their activities and to guarantee the right to education for every child - Art. 282, para. 14 of the LPSE.

The Erasmus+ Program offers flexible study paths and funding opportunities for mobility project activities. The implementation of projects related to non-discrimination in education is encouraged.

Through Key Action 1 *Educational mobility for citizens*, educational mobility projects promote transnational mobility for the purpose of training or practice of learners and staff in the fields of school education, vocational education and training, adult education, higher education and youth.

Through Key Activity 2 *Cooperation between organizations and institutions*, activities related to international cooperation and increasing the capacity of partner countries, the development, transfer and/or implementation of innovative practices and/or educational products at organizational, local, national or European level are supported, as well as joint initiatives, exchange of experience and the achievement of common long-term goals.

The suitable applicants for financing under Key Activity 1 can be: schools -

state, municipal, private or religious; independent nurseries; kindergartens - state, municipal or private; personal development support centers, including centers for special educational support; specialized service units; regional centers for supporting the process of inclusive education, vocational high schools, vocational secondary schools, vocational colleges, including private vocational colleges in secondary education, as well as centers for special educational support; vocational training centers (providing vocational training to persons over the age of 16); national agency for vocational education and training; organizations providing formal, non-formal and independent education for adults; local and regional public authorities; coordination bodies and other organizations with a role in the field of adult education - public body at local, regional or national level working in the field of non-professional education for adults (adult education organization); regional administrations of education; trade union organizations; employer organizations; cultural institutions - community centers; vocational training centers. All information can be found on the website of the Human Resources Development Center, which manages the largest European program for education, training, youth and sports "Erasmus +" - <https://hrdc.bg/>

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

Additional funds are provided from the state budget for working with children and students from vulnerable groups, i.e. children whose parents have low education or no education. The funds can be used to pay for salaries for employees included in the teams for the inclusion and retention in the education system of children and students of compulsory preschool and school age, for paying for additional lessons in Bulgarian in schools and for additional modules for children, who do not know the Bulgarian language, in kindergartens, as well as for personnel engaged in measures to support access to education and prevent the risk of dropping out of the preschool and school education system. With new amendments to the Ordinance on the financing of institutions in the preschool and school education system from 2023 in Art. 52a funds are provided for the appointment of educational mediators, social workers and/or teacher's assistants. The allocation of funds under Art. 52a for the budget year for kindergartens and schools is approved by order and published on the website of the MES. Separately, by order of the Minister of Education and Science, the remuneration of the educational mediators for the respective year is confirmed. The number

of appointed educational mediators for the academic year 2023/2024 is 1184. The funds for vulnerable groups in 2021 are in the amount of BGN 30,651,041, in 2022 – BGN 34,723,800, and in 2023 the amount is BGN 36,078,916.

Other relevant general measures, including gender equality

- | | |
|---|---|
| <ul style="list-style-type: none">✓ Legislation provides for gender equality in education✓ Policy measures aim to enhance gender equality☐ Gender-responsive education sector planning is undertaken✓ Providing positive or affirmative action measures☐ Providing financial incentives and fellowships✓ Teachers are trained (initial and in-service) on gender equality✓ Teachers are trained to combat stigmatisation¹⁹☐ Other: | <ul style="list-style-type: none">✓ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education☐ Re-entry programs for young mothers are provided for✓ Ensuring safe and adequate gender-sensitive sanitation facilities²⁰✓ Curricula are rid of all stereotypes²¹ and bias✓ Ensuring gender parity in science, technology, engineering and mathematics (STEM)✓ Ensuring gender parity in technical and vocational training education and training (TVET) |
|---|---|

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The educational process in the preschool and school education system, in accordance with Art. 3 of the LPSE is implemented in accordance with the principles of equal access to quality education and the inclusion of every child and every student, equality and non-discrimination in preschool and school education, humanism and tolerance.

Equality and the non-admission of discrimination based on gender are regulated in the Constitution of the Republic of Bulgaria in Art. 6, para. 2; in the Law on Protection from Discrimination in Art. 4, para. 1; in the provisions of Art. 3 and in Art. 4 of the Law on Higher Education.

¹⁹'Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them' (Cambridge Dictionary).

²⁰'Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#) , Gender-sensitive sanitation, 2018)

²¹Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

LHE, Art. 70, para. 2 Students, doctoral students and specialists - orphans, people with sensory disabilities and others with permanent disabilities and reduced working capacity of 70 and over 70 percent, military disabled, and war victims and persons who, at the time of reaching the age of majority, have a measure of protection taken in accordance with the Child Protection Act - placement in a foster family, social service of a residential type or a specialized institution, mothers with children up to 6 years of age and those with dispensaries are entitled to special reliefs, regulated in the rules of the higher education institution.

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

During the implementation of the activities for coverage, retention and inclusion according to the Mechanism for joint work of the institutions on coverage and inclusion in the educational system of children and students of compulsory preschool and school age, cases of dropping out of schoolgirls of Roma origin after VII or VIII grade are found due to early marriages are found.

Reasons for dropping out of children and students in compulsory preschool and school age, reflected by the scope teams in the information system for the implementation of the Mechanism for the period from the beginning of the 2023/2024 academic year to the beginning of the second academic term, are:

- cultural reasons - reluctance, lack of commitment and support on the part of parents and family, the presence of the child in kindergarten or school is not ensured - 27.49 %;
- dropped out due to unjustified absences – 7.9%;
- dropped out due to family reasons - difficult financial situation in the family, looking after sick parents or younger siblings, de facto marriage, birth of a child and others - 5.34%.

A reason for dropping out of school is the internal and external mobility of parents, where children and students leave the education system without declaring the changes to the institutions, as well as whether they continue their studies elsewhere.

In order to overcome these difficulties, we work with educational mediators, social workers, representatives of the Ministry of the Interior, representatives of municipal and regional administrations.

- Does the legal minimum age for marriage conform to international standards (18 years)²² :

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

✓ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

According to Art. 6 of the Family Code can be concluded by a person who has reached the age of eighteen.

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

- | | |
|--|---|
| ✓ Legislation provides for the right to education of national minorities | ✓ Teachers are trained on intercultural education |
| ✓ Policy measures aim to enhance the right to education of national minorities | ✓ Teachers are trained to combat stigmatisation ²⁴ |
| ✓ Policy elaboration includes consultations with local communities | ✓ Multilingual and intercultural education are supported |
| ☐ The right to carry out their own educational activities is legally guaranteed for national minorities | ✓ Native language instruction is ensured for national minorities |
| ☐ Educational standards are established for educational institutions run by national minorities | ✓ Adapting curricula and teaching and learning methods to their needs for national minorities |
| ✓ Positive or affirmative action measures are provided for national minorities | ✓ Curricula are rid of all stereotypes ²⁵ and bias |
| ☐ Financial incentives and fellowships are provided for national minorities | |
| ☐ Other ²³ : | |

²² Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practices, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

²³ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

²⁴ Supra note 15.

²⁵ Supra note 16.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

According to Art. 76, para. 1, para. 7 of the LPSE curricula have been created and published on the website of the MES in the mother tongue from the first to the seventh year of study in Turkish, Hebrew, Armenian, Romani. Main components of the programs: brief presentation, educational content, recommended distribution of study hours, assessment methods and forms, key competencies.

To help children and students from minority groups, the website of the MES has a separate heading "Inclusive education" and a sub-heading "Educational integration of children and students from ethnic minorities".

link: <https://www.mon.bg/dyasno-menyu/priobshtavashto-obrazovanie/podkrepa-za-lichnostno-razvitiie-na-deczata-i-ucheniczite/obrazovatelna-integratsiya-na-detsa-i-uchenitsi-ot-etnicheskite-maltsinstva/>

Strategic documents:

- Decision No. 278 of May 5, 2022;
 - National Strategy of The Republic Of Bulgaria For Equality, Inclusion And Participation Of The Roma (2021– 2030);
- National Action Plan for the period 2022- 2023 attached to the above stated document.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

The right to education in the Republic of Bulgaria is guaranteed for all citizens without exception under the Constitution.

Indigenous people:

- | | |
|--|--|
| ☐ Legislation provides for the right to education of indigenous people | ☐ Financial incentives and fellowships are provided for indigenous people |
| ☐ Policy measures aim to enhance the right to education of indigenous people | ☐ Teachers are trained on intercultural education |
| ☐ Policy elaboration includes consultations with local communities | ☐ Teachers are trained to combat stigmatisation ²⁶ |
| ☐ The right to carry out their own educational activities is legally guaranteed for indigenous people | ☐ Multilingual and intercultural education are supported |
| | ☐ Native language instruction is ensured |

²⁶Supra note 15.

☐ Educational standards are established for educational institutions run by indigenous people

☐ Positive or affirmative action measures are provided for indigenous people

☐ Other:

☐ Adapting curricula and teaching and learning methods to their needs for indigenous people

☐ Curricula are rid of all stereotypes²⁷ and bias

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

n/a

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

n/a

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁸ :

✓ Legislation provides for their right to education

✓ Policy measures aim to enhance their right to education

✓ Inclusion in mainstream schools is ensured

✓ Positive or affirmative action measures are provided for

☐ All administrative barriers to access education are removed

☐ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers²⁹ are provided for

✓ Teachers are specifically trained to ensure their inclusion

☐ Financial incentives and fellowships are provided for

✓ Auxiliary assistance is provided

☐ Multiple and flexible learning pathways³¹ are provided

✓ Curricula are rid of all stereotypes³² and bias

☐ Accelerated learning programs are provided

☐ Non-formal and/or alternative education programs are provided

✓ Language classes for newcomers are provided for

☐ Multilingualism and intercultural education are encouraged

²⁷Supra note 16.

²⁸Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#) : The impact of climate displacement on the right to education, 2020, p. 2).

²⁹While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#) : Handbook on the right to education, 2018, p. 96.

³¹Supra note 13

³²Supra note 16.

✓ Teachers are trained to combat stigmatisation³⁰

□ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The acceptance and training of persons seeking or granted protection is enshrined in the main educational documents:

- the Law on Preschool and School Education;
- Ordinance No. 11 of 01.09.2016 on the evaluation of the results of students' training - applies to cases where those seeking or receiving international protection have a document for a completed class, stage or degree of education;
- Ordinance No. 3 of 06.04.2017 on the terms and conditions for the reception and training of persons seeking or receiving international protection - applies to cases where those seeking or receiving protection do not have a document for a completed class, stage or degree of education;
- Ordinance No. 10 on the organization of activities in school education - the changes in this normative act were made in 2022 and regulate the admission of students from Ukraine who have Bulgarian citizenship, but do not have a document for a completed class, stage or degree of education.

According to Art. 17 of the LPSE (1) children and students of compulsory pre-school and school age residing in the country, regardless of their citizenship, are provided free education in the Bulgarian language under the conditions and according to the order specified in the state educational standard for the acquisition of the Bulgarian written language and in the state educational standard for the financing of institutions.

(2) Students of compulsory school age residing in the country, whose parents are citizens of other member states and work in the territory of the Republic of Bulgaria, are also provided with training in their mother tongue and culture in cooperation with the countries of origin under conditions and order determined by the state educational standard for the organization of activities in school education.

(3) In kindergartens and schools where children and students who seek or have received international protection in the country are educated in accordance with the Asylum and Refugees Act, additional training in the Bulgarian language is provided,

³⁰Supra note 15.

if necessary, under the conditions and according to the procedure specified in the state educational standard for the acquisition of the Bulgarian literary language and in the state educational standard for the financing of the institutions.

MES prepared curricula for Bulgarian as a foreign language.

In 2022, MES prepared teaching aids on Bulgarian as a foreign language for the initial stage of students seeking or receiving protection and migrants, level A1 and A2, which are published on the website of MES and access is free.

In order to help migrant children and students and those seeking protection, the website of MES has a section "Inclusive education" and a sub-section "Children and students seeking or receiving protection". Up-to-date information is also included in the websites of all the regional administrations of education in the country. Link: <https://www.mon.bg/dyasno-menyu/priobshtavashto-obrazovanie/>

According to the Law on Higher Education and specifically Art. 68. (10) the admission of students - foreign citizens or stateless persons who have received temporary protection on the territory of the Republic of Bulgaria, is carried out under reduced conditions and according to the procedure determined by an act of the Council of Ministers, in places other than those approved according to the procedure of Art. 9, para. 3, item 6, letters "a" and "b" annual number of admitted students. The number of students admitted for study is approved annually by the Ministerial Council for Higher Education Institutions and Specializations.

(11) After the expiration of the term of the temporary protection or after the grounds for the granting have ceased, the students under par. 10 can continue their studies in the relevant higher education institution under the conditions and according to the order set for Bulgarian citizens.

Art. 95. (9) Students, doctoral students and specialists - citizens of member states of the European Union and the European Economic Area, pay fees for their studies under the conditions and according to the order set for Bulgarian citizens.

Transitional Provisions to the Law on Amendments and Supplements to the Law on Higher Education § 4. Foreign citizens or stateless persons who received temporary protection on the territory of the Republic of Bulgaria and were accepted as students in Bulgarian higher education institutions before the entry into force of this law, continue their studies under the conditions and according to the order in which they were admitted.

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☐ No

- Please elaborate:

n/a

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

In order to assist Ukrainian citizens on the territory of Bulgaria for admission to Ukrainian higher education institutions, candidate-student campaigns are carried out.

People with disabilities:

✓ Legislation provides for their right to education

✓ Policy measures aim to enhance their right to education

✓ Inclusion in mainstream schools is ensured

✓ Special schools are used as resource centers for inclusive schools

✓ Positive or affirmative action measures are provided

✓ Financial incentives and fellowships are provided

☐ Other

✓ Mainstream teachers are specifically trained on disabilities

✓ Teachers are trained to combat stigmatisation³³

✓ Auxiliary assistance is provided

✓ Curricula and teaching and learning methods are adapted

✓ Curricula are rid of all stereotypes³⁴ and bias

✓ Education infrastructure and learning materials are adapted

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The system of preschool and school education in the Bulgarian institutions has assigned psychologists, pedagogical advisers, special pedagogues, resource teachers, speech therapists, teachers of visually impaired pupils, hearing and speech rehabilitators of hearing impaired pupils, social workers, teacher's assistants and other specialists who provide support for the personal development of children and pupils, which support is regulated in the Law on Preschool and School Education and the Ordinance on Inclusive Education.

³³Supra note 15.

³⁴Supra note 16.

According to the abovementioned two normative acts, there are two types of support for personal development - general and additional.

Additional support for personal development is provided to children and pupils: with special educational needs; with chronic diseases; with distinguished talents; at risk and includes: work with a child and a pupil in a specific case; psycho-social rehabilitation, rehabilitation of hearing and speech, visual rehabilitation, rehabilitation of communicative disorders and physical disabilities; provision of an accessible architectural, general and specialized supporting environment, technical means, specialized equipment, didactic materials, methodologies and specialists; provision of training in special subjects for pupils with sensory disabilities; resource support.

The type and forms of training, as well as the specific activities for the additional support for personal development, are determined by a support plan for the child or pupil. The support plan for children and pupils also defines the hours of resource support. Additional support for personal development is provided by the specialists mentioned above, who are assigned to kindergartens, schools, personal development support centers, centers for special educational support, as well as specialists from state specialized service units of the Ministry of Education and Science - the regional centers for supporting the process of inclusive education, the State Speech Therapy Center - city of Sofia and the National Children's Palace.

Additional support is provided based on an assessment of individual needs, which is carried out by a personal development support team at the nursery or school. The personal development support team must include a psychologist or pedagogical advisor, as well as a speech therapist. The team may include other specialists, as well as representatives of child protection authorities. The support team for personal development works together with parents and, if necessary, with the regional support centers for the process of inclusive education and/or with the personal development support centers.

The support team for personal development in the kindergarten or school:

1. identifies the strengths of the child or pupil, the difficulties related to their development, training and behavior, as well as the reasons for their occurrence;
2. assesses the individual needs of the child or pupil;
3. prepares and implements a support plan;
4. monitors and evaluates the development of each specific case;
5. performs other functions provided for in the state educational standard for inclusive education.

The provision of additional support for personal development is carried out under the conditions and in accordance with the Ordinance on Inclusive Education.

Regional support teams for the personal development of children and pupils with special educational needs are created at the regional centers for supporting the process of inclusive education. The composition of the teams includes resource teachers, special pedagogues, including from the centers for special educational support, psychologists, speech therapists and other specialists, if necessary, as well as representatives of the Regional Education Directorates. The head of the team is the representative of the relevant Regional Education Directorate.

The regional teams at the regional centers to support the inclusive education process do the following:

1. based on the evaluations of teams from kindergartens or schools, the team proposes to the director of the regional center for supporting the process of inclusive education to approve or disapprove the provision of additional support to children and pupils with special educational needs;
2. based on an application by the director of the respective kindergarten and school, assesses the individual needs for additional support for children and pupils with special educational needs, when a team cannot be formed in the school or kindergarten, and proposes to the director of the regional center to support the process of inclusive education to approve or disapprove the provision of additional support;
3. proposes and organizes, if necessary, the provision of methodological support for working with children and pupils with special educational needs at kindergartens, schools and personal development support centers;
4. informs parents about the possibilities for continuing education or acquiring a professional qualification for pupils with special educational needs after the VII and X grade.

Exceptionally, when the goals of education cannot be achieved in any other way for the support and training of children and pupils for whom the assessment of individual needs has established that, in accordance with their educational needs, they should be educated in a center for special educational support or in special groups after the expressed wish of the parent and opinion of the regional center for supporting the process of inclusive education, at the suggestion of the team in the kindergarten or school, outside support is organized.

5. organizes a re-assessment of the individual needs of children and pupils with special educational needs if the parent disagrees with the assessment or with the proposed additional support and proposes to the director of the regional center for supporting the process of inclusive education to approve or disapprove the provision of additional support for children and pupils with special educational needs;

6. carries out an assessment of the individual needs of children and pupils with special educational needs after a parent's application for referral to study in special schools for pupils with impaired hearing or impaired vision;

7. supports the process of providing additional classes and groups of children and students from kindergartens and schools in centers for special educational support.

The groups and classes are organized by order of the director of the relevant center for special educational support at the proposal of the regional center for supporting the process of inclusive education after the permission of the head of the Regional Education Directorate.

To help children and students with special educational needs, the website of MES has a section "Inclusive education" and a sub-section "Support for the personal development of children and students".

link: <https://www.mon.bg/dyasno-menyu/priobshtavashto-obrazovanie/podkrepa-za-lichnostno-razvitie-na-deczata-i-ucheniczite/obrazovatelna-integratsiya-na-detsa-i-uchenitsi-ot-etnicheskite-maltsinstva/>

Students with special educational needs are provided with more time to take the National External Assessment (NEA) and State Matriculation Examinations (SME) exams - Ordinance on Inclusive Education, Art. 107, para. 1 and 2.

A Center for the Educational Integration of Children and Students from Ethnic Minorities has been established, which is responsible for the development, implementation and financing of programs and projects for educational integration, which aim to promote equal access to quality education and improve the learning outcomes of children and the students. Through its activities, the Center supports the implementation of the policy for educational integration and intercultural education of children and students.

An essential measure is the adoption and implementation of the Law on Bulgarian Sign Language. Activities related to Bulgarian sign language are planned for 2024.

1. Development of a platform for creating and processing a corpus and resources in Bulgarian sign language (the implementation of this goal will last at least 6 years).

2. Adaptation, standardization and approval for competence in Bulgarian sign language in accordance with the current common European language framework: learning, teaching, assessment

- Methodology for training in Bulgarian sign language, consistent with the European language framework (for trainers, teachers, parents).
- Methodology for assessing language competence in Bulgarian sign language, in accordance with the current European language framework.

(fulfillment of this objective will take at least 4 years).

In the exercise of the right to education, reliefs are provided for in the Law on Higher Education.

According to Art. 68. para.3 under reduced conditions and in accordance with the procedure determined by the regulations for the activities of the higher education institution, the following candidate students who successfully participated in the competitive exams are admitted:

2. persons with permanent disabilities and reduced working capacity of 70 and over 70 percent;
3. war disabled and war injured;
4. orphans;
5. mothers with three or more children.

According to Art. 70. para. 2 students, doctoral students and specialists - orphans, people with sensory disabilities and others with permanent disabilities and reduced working capacity of 70 and over 70 percent, military disabled, and war victims and persons who, at the time of reaching the age of majority, have a measure of protection taken in accordance with the Child Protection Act - placement in a foster family, social service of a residential type or a specialized institution, mothers with children up to 6 years of age and those with dispensaries are entitled to special reliefs, regulated in the rules of the higher education institution.

According to Art. 95. para.7 the following are exempted from paying fees in public higher education institutions:

1. persons who are orphans;
2. persons with permanent disabilities and reduced working capacity of 70 and over 70 percent; orphans;
3. war disabled and war injured;

4. persons who, at the time of reaching the age of majority, have taken a protection measure under the Child Protection Act - placement in a foster family, a residential-type social service or a specialized institution.

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

Students from poor households:

- | | |
|---|---|
| ☒ Financial incentives and fellowships for school enrollment are provided | ☒ Teachers are trained to combat stigmatisation ³⁵ |
| ☒ Transport, meals and education material are subsidized or provided free of charge beyond compulsory education | ☒ Curricula are rid of all stereotypes ³⁶ and bias |
| ☐ Positive or affirmative action measures are provided | |
| ☐ Other: | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Students from poor households receive scholarships provided by the school budget. Pursuant to Decree of the Council of Ministers No. 328/2017 on the terms and conditions for students to receive scholarships after completing primary education in Article 4. para.1 it is recorded that the monthly stipends are for:

1. achieved educational results;
2. supporting access to education and preventing dropout;
3. supporting students with permanent disabilities;
4. students without parents.

para.2 The school may also grant monthly scholarships to students with only one parent on the proposal of a school committee.

³⁵Supra note 15.

³⁶Supra note 16.

According to Art. 5, one-time scholarships are awarded to students for overcoming onetime social circumstances related to their access to education, or for achieving high results in academic activities or in activities in the fields of science, technology, arts and sports.

Free transportation is provided for children in compulsory preschool age and for students from I to XII grades inclusive.

Schools provide a full-day organization of the school day, which includes conducting lessons according to the school curriculum, self-training activities, organized recreation and physical activity, and interest-based activities.

Schools provide free textbooks and teaching aids. According to LPSE art. 164 the system of pre-school and school education provides for free use by all children and all students from I to XII grades, including educational books, as well as textbooks and study sets and e-readable textbooks.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

Information is included in 1.1. *Other measures adopted to prevent and eliminate discrimination in education and ensure equal access to all levels and types of education.*

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized "the right to education during early childhood as beginning at birth" (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁷ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education³⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to "the provision of at least one year of free and compulsory pre-primary education".

- Please indicate the measures taken to ensure access to quality ECCE (*several items may be ticked*):

³⁷Which states that "ECCE is part of the right to education and the main foundation for holistic human development".

³⁸Which commits states to "Enhance policy and legal frameworks to ensure that the right to education includes ECCE"

- ✓ Prior to pre-primary education, ECCE services are free
- ✓ Prior to pre-primary education, ECCE services are affordable
- ✓ ECCE services are accessible on a non-discriminatory basis
- ✓ ECCE services respect a child's need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play.

- Please elaborate further on the measures taken:

The nursery work has over 100 years of history. Nursery groups admit children from 3 months to 3 years of age. Experts have been developing a standard for healthy child development for several years, and it is expected to be finalized. Enrollment in nurseries is not mandatory.

- Is compulsory and free of charge pre-primary education available?

- ✓ Pre-primary education is compulsory. Please provide the age of enrollment and duration:

According to Art.8, para.1 of the LPSE pre-school education is mandatory from the school year, which begins in the year the child reaches the age of 4.

According to Art. 56 of the LPSE pre-school education is carried out by kindergartens and by schools that can provide conditions for this.

Pre-school education lasts from the age of 4 to the age of 6 inclusive. This is followed by the continuation of compulsory education at the age of 7 in the primary stage in the 1st grade.

- ☐ Pre-primary education is **not** compulsory.

- ✓ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

According to Art. 9 of the LPSE compulsory pre-school education in state and municipal kindergartens and schools is free for children of Bulgarian citizens, as well as for citizens of member states and third countries.

- ☐ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (eg, enrollment fees and tuition fees) and indirect costs (eg, school supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

n/a

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- | | |
|---|---|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low number of professionally trained educators |
| ☐ Poor quality programs | ☐ Lack of support to families |
| ☐ Other: | |

Difficulties related to care and education in early childhood care are ensuring access, full coverage and permanent inclusion of children from families whose mother tongue is not Bulgarian.

According to Art. 8, para. 1 of the Ordinance on Inclusive Education "The early assessment of the needs of support for the personal development of children is carried out in the process of preschool education. The early assessment is carried out by the pedagogical specialists in the kindergarten." According to Art. 8, para. 3 of the Ordinance early assessment of the needs of support for personal development of children in kindergarten includes:

1. early assessment of the child's development and the risk of learning difficulties;
2. additional modules for children who do not speak Bulgarian;
3. determination of the need to carry out an assessment by a personal development support team of the individual needs for providing additional support for the personal development of the child in case of:
 - a) difficulties in the child's physical, cognitive, linguistic, social, sensory, emotional and creative development compared to children of the same age group;
 - b) presence of risk factors and circumstances in the child's environment;
 - c) presence of chronic diseases that hinder the child's education and inclusion in the activities of the kindergarten;
 - d) presence of pronounced strengths of the child in the field of arts and sports.

The early assessment of the child's development and the risk of the occurrence of learning difficulties (whether there are indications of the occurrence of learning difficulties or not) is carried out for children from 3 years to 3 years and 6 months when the child enters kindergarten for the first time. The assessment is carried out by screening to determine the risk of learning

difficulties, and is carried out individually for each child with the written consent of the parent after informing them about the method of implementation.

After conducting the assessment, the parent is informed of its results.

Depending on the results of the evaluation, the coordinator, together with the parent, determines for each child activities from the general and/or additional support for personal development.

The results of the assessment are used only to determine support activities for the child's personal development and are accessible only to the teachers in the group and other pedagogical specialists in the kindergarten who have carried out the assessment and/or work with the child, as well as their parents.

Under the conditions and in accordance with the Ordinance on inclusive education, it is possible to apply the screening test at 5 and 6 years of age in the preparatory groups in kindergartens or in schools where early assessment has not been carried out from 3 years to 3 years and 6 months for assessment of the risk of learning difficulties.

The screening test for determining the risk of learning difficulties is not applied to children whose mother tongue is different from Bulgarian, when they do not have sufficient command of the Bulgarian language.

In cases where the child does not speak Bulgarian, applies Art. 14, para. 2, which reads as follows: Training through additional modules is aimed at children for whom the Bulgarian language is not their mother tongue or who do not have a good command of the Bulgarian language.

Training through additional modules in the educational direction "Bulgarian language" for children in the preparatory groups for compulsory preschool education, for whom the Bulgarian language is not their mother tongue, is mandatory and is carried out in pedagogical situations in accordance with the state educational standard for the acquisition of the Bulgarian literary language. Thus, the additional modules in Bulgarian are implemented by the teachers in the pre-school education groups according to programs prepared by the teachers.

Within the framework of the project "Active inclusion in the preschool education system" under the Operational Program "Science and Education for Intelligent Growth", a specialized methodology for additional training in Bulgarian for children of preschool age, applicable to all age groups, was prepared for implementation in the institutions of the preschool education system. The methodology includes:

- a toolkit for assessing the degree of Bulgarian language proficiency of children of preschool age, together with 16 different test options (4 for each age group) for assessing the degree of Bulgarian language proficiency of the child;
- a toolkit for tracking the progress of language acquisition of children who have been provided general support as a result of an identified low level of Bulgarian language proficiency, along with 16 different test options (4 for each age group) to track the child's progress, as well as a total of 200 tasks for all age groups;
- instructions for planning work with a child of each age group in accordance with the results of the attached toolkit for assessing the degree of proficiency in the Bulgarian language;
- a book for the teacher, containing methodological guidelines for applying the Methodology;
- an electronic version of the results tracking toolkit, which allows determining the level of Bulgarian language proficiency and makes it possible to track progress;
- supporting tools in accordance with the Methodology in the form of teaching aids and game aids;
- a training program for the application of the Methodology, designed to increase the qualification of pedagogical specialists.

In terms of securing places in kindergartens, there are difficulties in only a few large regional cities - Sofia, Varna, Plovdiv. The state has taken measures for overcoming - construction of new kindergarten buildings and expansion/reconstruction of existing ones, financial compensation to parents of rejected children.

- Please elaborate. Brief quantitative information may be added.

For 7 years, there is an established and functioning interdepartmental Mechanism for the coverage of children and students, which ensures that there are no children and students who are not covered and who have dropped out of the education system. Teams are working, including specialists from kindergartens, schools, regional departments of education, municipalities, the Ministry of the Interior, the State Agency for Child Protection. The help of mediators is used. Measures for inclusion, support and retention in the system are applied.

Additional funds are provided from the state budget for working with children and students from vulnerable groups, i.e. children whose parents have low education

or no education. The funds can be used to pay for salaries for employees included in the teams for the inclusion and retention in the education system of children and students of compulsory preschool and school age, for paying for additional lessons in Bulgarian in schools and for additional modules for children, who do not speak Bulgarian, in kindergartens, as well as for personnel engaged in measures to support access to education and prevent the risk of dropping out of the system. More information is presented on page 15.

Over 75,000 parents and children in kindergartens and nursery groups will receive support under the "Strong Start" project, financed under the "Education" program - 2021-2027, co-financed by the EU, which is implemented by the MES. One of its main goals is to develop the potential in preschool education through support for personal development with a view to more successful social realization. The focus will also be on access and permanent inclusion of children in pre-school education in order to reduce the number of dropouts from the education system. Already at the kindergarten or nursery level, children will be included in additional training, interest-based activities, sports activities, activities related to nature conservation, etc. Through various initiatives and events, parents will be actively involved in the process of preschool education and in the life of the educational institution. Intensive interaction with parents will be implemented at the level of kindergarten and nursery groups and at the school level with groups for compulsory preschool education in order to form positive attitudes towards education and towards the full participation of children in the educational process. Training for over 3,500 pedagogical specialists and non-pedagogical staff (mediators and social workers) who provide expert methodical assistance in personal development activities is also planned.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide "12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education - of which at least nine years are compulsory."

Primary education

- Please provide the age of enrollment and duration of primary education:

According to Art. 8, paragraphs 2, 3, 4 of the LPSE (2) School education is mandatory until the child reaches the age of 16 and starts in the school year, which begins in the year the child reaches the age of 7.

(3) School education can also start from the school year beginning in the year the child reaches the age of 6, at the discretion of the parent and upon readiness for school, certified under the conditions and according to the order specified in the state educational standard for preschool education.

(4) The start of school education can be postponed by one academic year when the child's health condition does not allow admission to the 1st grade, established in accordance with the procedure defined in the state educational standard for preschool education.

According to Art. 73 of the LPSE: (1) According to the degree the school education is primary and secondary; (2) Schooling for the acquisition of primary education is carried out from I to VII grade inclusively in two stages, as follows: 1. elementary school - from I to IV grade inclusive (4 years) , and 2. junior high school - from V to VII grade inclusive (3 years) .

According to Art. 47 and Art. 50 of Ordinance No. 11 of September 1, 2016 for evaluating the results of students' training , national external assessment (NEA) in the form of a test is conducted at the end of the primary stage, in the IV grade, in two subjects - Bulgarian language and Literature and Mathematics.

According to Art. 129. (1) students who have completed their studies in grade IV receive a certificate of completion of the initial stage of primary education.

The Ordinance on Inclusive Education regulates public relations for providing inclusive education to children and pupils in the preschool and school education system, as well as the activities of the institutions in this system for providing support for personal development of children and pupils.

According to Art. 4, para. 1 and para. 2 of the Ordinance, children and students in the preschool and school education system are provided with general and additional support for personal development, which provides an appropriate physical, psychological and social environment for the development of their abilities and skills.

Personal development support is implemented in accordance with the individual educational needs of each child and each student.

- Is primary education compulsory and free of charge?

☒ Primary education is compulsory

☐ Primary education is **not** compulsory.

☒ Primary education is free of charge.

☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (eg, enrollment fees and tuition fees) and indirect costs (eg, exam fees, school supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

In the field of education, the leading role is played by LPSE. Compulsory school education in it is linked not to completed stages and degrees, but to age – up to the age of 16 (Article 8, Paragraph 2). Compulsory pre-school and school education is free for children and students in state and municipal kindergartens and schools, and for Bulgarian citizens and citizens of member states, as well as those from third countries (under certain conditions described in Art. 9, para 2 and paragraph 3) it is free even after the compulsory school age.

From the academic year 2024-2025, general education textbooks will now be free for all secondary education students.

School uniforms are agreed with the school community councils, teaching councils and student councils and are purchased by parents.

According to Art. 102, para. 2 of the LPSE the school organizes a full-day organization of the school day for students from I to IV grades at the request of the parents, as well as from V to VII grades at the request of the parents and according to the school's capabilities. The conditions and order for organizing and conducting the half-day and full-day organization of the school day (FDOSD) are determined by the state educational standard for the organization of activities in school education. FDOSD includes conducting lessons according to the school curriculum, self-training activities, organized recreation and physical activity, and interest-based activities.

- What challenges were encountered in realizing primary education?

☐ Limited access

☐ Issues of equity and inclusion

☐ High dropout rates

☐ Poor learning outcomes in:

Foundation literacy

Numeracy

☐ Poor quality programs

Social and emotional learning

☐ Other:

Others

☐ Disparity in learning outcomes

☐ Low number of professionally trained teachers

When tracking progress towards UN Sustainable Development Goal 4, the gender parity index at the end of primary education at the end of the period of 2015-2022 was below average at 0.99 against an EU average of 1.00 and shows a lag in improvement, although the overall indicator for Bulgaria averaged 1.01 over the entire period.

The already launched new project "Success for you" under the program "Education" - 2021-2027, co-financed by the EU, which is also implemented by the MES, will enable schools with a complex of activities to help students improve their educational results. The project "Success for you" is mainly focused on grades I to VII. Emphasis is placed on general support for students at risk of dropping out, as well as on Bulgarian language and literature training for students with the aim of their successful performance in the national external assessments, as well as in the state matriculation exams. There is an opportunity to work for educational mediators and social workers. Career guidance activities for students will be funded so that they can make an informed choice, especially after 7th grade, where to continue their education. The project also includes training for over 4,000 pedagogical specialists and non-pedagogical staff. This includes educational mediators, social workers and other non-teaching staff. The activities include interest-based activities, inter-school activities and additional training in various subjects.

With funding of BGN 151,123,000, the schools will be able to support nearly 100,000 students and their parents. At the end of each school year, the results of the students' learning will be tracked and an analysis of the work with them will be made.

- Please elaborate. Brief quantitative information may be added.

In 2022, the Center for Educational Integration of Children and Students from Ethnic Minorities (CEICSEM) completed the implementation of the National Program "Supporting municipalities to implement activities for educational desegregation and prevention to prevent secondary segregation" for the 2022/2023 academic year and began the implementation of the National Program "Supporting

Municipalities for Educational Desegregation" for the 2023/2024 school year. The national program for 2023 has a total budget of BGN 500,000.

In this regard, it should be noted that the term "educational segregation" refers to the ethnic segregation of educational institutions (kindergartens and schools) located within the Roma neighborhoods or close to them and is entirely a working term aimed at to overcome certain processes that are the result of the aspiration of certain communities over time to separate their ethno-cultural territories within the framework of large cities. This working term does not and has never described legally established norms limiting the Roma ethnicity in any way. Ethnic origin cannot and should not be seen as a sign of vulnerability or to put some Bulgarian citizens at a disadvantage compared to other Bulgarian citizens.

It should also be noted that many parents prefer their children to be educated in the educational institutions located near the designated Roma neighborhoods, in order not to leave the territory of the community to which they belong, which is governed by conservative community traditions and patriarchal models. On this occasion, the modernization of certain communities is a gradual process that cannot happen by force, therefore the Ministry of Education and Science works with the so-called soft measures, including work with parents, such as: information campaigns, motivational meetings, seminars, trainings, etc., as well as the involvement of educational mediators and other non-pedagogical personnel.

In connection with the above, CEICSEM projects also implement such soft measures aimed at building an educational and public environment for the implementation of the desegregation process. The total budget of CEICSEM per year amounts to BGN 1,000,000.

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrollment and duration of lower secondary education:

According to Art.73 of the LPSE, school education is primary and secondary. The lower secondary stage of education is part of the basic level of education and takes place within 3 school years - from V to VII grade inclusive.

According to Art. 47 and Art. 51 of Ordinance No. 11 of September 1, 2016 for evaluating the results of students' training, national external assessment (NEA) in the form of a test is conducted at the end of the lower secondary stage, in the VII grade, in two subjects - Bulgarian language and Literature and Mathematics. In addition to these mandatory exams, students may, at their own request, also take an exam on the foreign language subject studied in the compulsory school hours, which measures the degree of achievement of individual language competences.

According to Art. 130 of the LPSE students who successfully completed the 7th grade acquire primary education, which is certified by a certificate of primary education. The certificate gives the right to continue training in the next level of education, as well as training for the acquisition of a professional qualification.

Students continue their education in the first high school stage, being able to choose the same or another school offering profiled or vocational training in profiled and vocational high schools; arts and culture schools; in sports schools. This process is carried out in accordance with Section IX of the LPSE: *Admission plan. Admission and transfer of pupils.*

- Please provide the age of enrollment and duration of upper secondary education:

Art. 74 of the LPSE (1) According to the preparation, school education is general, profiled and vocational.

(2) General education is carried out mainly through schooling for the acquisition of general education and advanced training.

(3) Profiled education is carried out at the secondary level through the general education and extended training - in the first high school stage, and through the general education and profiled training - in the second high school stage, where it can also be carried out through the extended training.

(4) Vocational education takes place at the secondary level - in the first and second high school stage, through general education and professional training. It can also be supplemented by advanced training.

According to Art. 73, para.3 of the LPSE schooling for the acquisition of secondary education is carried out from VIII to XII grades inclusively, in two stages, as follows:

1. first high school level - from VIII to X inclusive, and 2. second high school level - from XI to XII inclusive.

The age of students in class VIII is 14 years.

According to Art. 47 and Art. 52 of Ordinance No. 11 of September 1, 2016 for evaluating the results of students' education, national external assessment (NEA) in the form of a test is conducted at the end of the first high school stage, in class X, in two subjects - Bulgarian language and Literature and Mathematics. In addition to the mandatory exams, students may, at their own discretion, also take exams - on the subject of foreign language - English, French, German, Italian, Spanish, Russian, studied in the compulsory school hours, which measure the degree of achievement of individual language competences in the field in the foreign language, and/or in the subject of information technology, through which the degree of achievement of individual key competences in the field of digital competences is measured.

According to Art. 131 of the LPSE students receive a certificate of completion of the first high school stage of secondary education, which gives them the right to continue their studies in the second high school stage of secondary education and to study for the acquisition of a professional qualification.

The age of students in class X is 16 years. Compulsory school education is not associated with completed stages and degrees, but with age - up to the age of 16 - according to Art. 8, para. 2 of the LPSE.

According to Art. 132 of the LPSE students who successfully completed the 12th grade become matriculates and acquire the right to take the state matriculation exams and the state exam for acquiring a professional qualification. There are two mandatory exams, one of which is on the subject of Bulgarian language and Literature. The second exam is according to the type of preparation - either in a profiling subject, or for acquiring a professional qualification - in the theory and practice of the profession.

According to Art. 133, the acquisition of secondary education is certified by a secondary education diploma, which gives the right to continue in higher education or professional training. Graduates who successfully pass a professional exam receive a certificate of professional qualification.

- Is lower and upper secondary education compulsory and free of charge?

✓ Lower secondary education is compulsory.

☐ Lower secondary education is **not** compulsory.

✓ Lower secondary education is free of charge.

☐ Lower secondary education is **not** free of charge.

✓ Upper secondary education is compulsory.

☐ Upper secondary education is **not** compulsory.

✓ Upper secondary education is free of charge

☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (eg, enrollment fees and tuition fees) and indirect costs (eg, exam fees, school supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Compulsory school education is free for students in state and municipal schools, and for Bulgarian citizens and citizens of member states, as well as those from third countries (under certain conditions described in Art. 9, para 2 and paragraph 3) it is free even after the compulsory school age. From the academic year 2024-2025, general education textbooks will now be free for all secondary education students.

School uniforms are agreed with the school community councils, teaching councils and student councils and are purchased by parents.

No examination fees are payable by students. The LPSE provides for the validation of knowledge and skills acquired through non-formal and independent education through exams.

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labor laws.

✓ Yes o No o

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

According to Art. 93 of the LPSE (1) based on the framework curriculum under Art. 91, para. 2 the Minister of Education and Science - after agreement on competence with representatives of the employers - approves standard curricula by professions for vocational training.

(2) The standard curriculum defines the study subjects or modules of the sectoral and specific vocational training and the number of study hours determined for their study by classes, stages and degrees and according to the degrees of professional qualification of the profession.

According to Art. 94 of the LPSE each school, based on the relevant framework or type of curriculum, develops a school curriculum according to the interests of the students and their capabilities.

In vocational high schools, students can study professions in a dual system of learning, also called learning through work. It starts from class VIII and ends in class XII. The actual training through work takes place in the XI and XII grades, in the second high school stage, for students who have reached the age of 16. (LPSE, art. 115, para. 3).

This is a specific form of training where the professional qualification is acquired through practical training in a real work environment and in a school providing professional training.

It is organized in accordance with the provisions of the Law on Vocational Education and Training (LVET), the Labor Code, Ordinance No. 1 of September 8, 2015 on the conditions and procedures for conducting training through work and Ordinance No. RD-04-4 of 2019 on the terms and conditions for creating and maintaining an information database of employers who meet the requirements for participation in partnerships for training through work (dual system of training).

LVET regulates the requirements for the mentor (LVET, art. 17a1) - a worker or employee in the enterprise designated by the employer, under whose leadership the practical training takes place in a real working environment, as it introduces the requirements for the methodical teacher (LVET, art. 17a2), who makes the connection between the employer, the mentor and the school and is determined by the school director. LVET also creates an obligation for employers' organizations, which are obliged to provide conditions for the realization of a partnership between employers and schools (LVET, art. 56, para. 7)

The Labor Code regulates the conditions for concluding an employment contract under the dual education system /art. 230 of LC/. This is a training contract, with which the employer undertakes to train the worker or employee in the process of work in a certain specialty, and the worker or employee - to learn it. Unlike other types of training contracts, with training contracts in the dual system, such a contract can be concluded more than once with one employer

The training contract for the dual system determines the form, place and duration of the training, as well as other issues related to the implementation of the training. In the dual system, the duration of the training is determined according to the curricula according to which the student is trained.

The employment contract with the condition of training students in the dual system is concluded subject to compliance with the conditions for special protection of minors, regulated in Chapter Fifteen of the Labor Code. According to this protection, the employment of persons under 16 years of age is prohibited. Students who have reached the age of 16 are accepted for work after a thorough preliminary medical examination and a medical conclusion that they are fit to perform the relevant work. For these students, there must also be a permit from the labor inspectorate on a case-by-case basis.

- What challenges were encountered in achieving secondary education?

- ☐ Poor learning outcomes
- ☐ Low readiness of primary graduates
- ☐ Low number of professionally trained teachers

The analysis of the indicators from PISA 2022 shows a negative trend of a serious departure from the set goals. According to the PISA 2022 data, more than half of the students show results below the critical (average of the three areas of the study).

Efforts in the field of pre-school and school education, and more specifically to optimize curricula, lead to progress in the implementation of the UNESCO Convention and Recommendation. In order to have more sustainable results, it is necessary to have a more comprehensive policy to change: the inadequate parental support for education in some families; the long distances with bad roads to schools in some regions of the

country; the mistrust and the public attitude (family, school, neighborhood, municipality) about the stigmatization of individual groups.

- Please elaborate. Brief quantitative information may be added.

The PISA survey is conducted once every 3 years, and the last survey for which data has been published was conducted in the period 21 March - 22 April 2022. The results of the survey were published on 5th December, 2023, according to which the proportion of 15-year-olds with low achievements in the 3 subjects of the research is:

Reading – 52.9% against an EU average of 22.5%;

Mathematics – 53.6% against an EU average of 22.9%;

Natural sciences – 48.0% against an EU average of 22.3%.

To ensure the right to education, MES implements measures in three main directions: outreach, retention and early-leaving prevention through the Outreach Mechanism; implementation of the necessary educational support for children and students for whom the Bulgarian language is not their mother tongue and who have gaps or encounter difficulties in learning the educational content through additional training in academic subjects; interests, career guidance and counseling; a supportive environment in educational institutions for children and students whose mother tongue is different from Bulgarian by appointing educational mediators and social workers to be involved in community work. With funding of BGN 151,123,000 under the "Support for Success" project, schools will be able to support nearly 100,000 students and their parents. At the end of each school year, the results of the students will be tracked and the work with them will be analyzed.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³⁹, and target 4.4⁴⁰. Article 4 of the Convention requires states to make "higher education equally accessible to all on the basis of individual capacity". Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by "every appropriate means, and in particular by the progressive introduction of free education". Higher education includes technical and vocational education and training.

³⁹Which calls on states to "ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university".

⁴⁰Which recommends to "substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship".

- Please indicate efforts made to ensure that higher education, including technical, vocational education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

☐ Higher education is free of charge

☒ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)

☒ Higher education is accessible through financial incentives and scholarships

☐ Higher education is accessible through positive or affirmative action measures

☒ Higher education is accessible through the credit transfer system between states

☐ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).

☐ Other:

A student can be exempted from tuition fees when concluding a contract with an employer in accordance with the Ordinance on the terms and conditions for ensuring the payment of training costs for students with contracts with an employer, as well as receive a bank credit for the amount of the tuition fee under the Law for lending to students and doctoral students.

Students in professional fields and protected specialties defined by an act of the Council of Ministers are also exempt from paying fees.

Law on lending to students and doctoral students - Art. 1. This law regulates the terms and conditions for crediting students and doctoral students with state financial support. Art. 2. (1) The purpose of the law is to improve the conditions for access to higher education.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (eg, enrollment fees and tuition fees) and indirect costs (eg, exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

The priority policies for the development of the higher education system are aimed at improving access and increasing the share of higher education graduates, increasing the quality of higher education and its compatibility with European higher education systems, building a sustainable and effective relationship between higher education institutions and the labor market, aiming at successful implementation

throughout life and achieving a dynamic match between the demand and supply of specialists with higher education.

According to Art. 8 of the Law on Higher Education, the state creates conditions for the free development of higher education, as well as conditions for access to higher education, by: 4. creating and maintaining a system for granting loans for payment of tuition and maintenance fees and, under certain conditions, providing social and household benefits to students, doctoral students and specialists.

- What challenges were encountered in realizing higher education?

- | | |
|---|---|
| ☐ Limited access | ☐ Low number of professionally trained professors |
| ☐ Issues of equity and inclusion | ☐ Insufficient mechanisms to ensure smooth transition from secondary to tertiary |
| ☐ Poor quality programs | |
| ☐ Poor learning outcomes | |
| ☐ Other: | |

There is low number of university graduates aged 25-34.

In the carried-out Analysis of Bulgaria's progress towards the implementation of the UN Sustainable Development Goals, the relative share of the population aged 25-34 with completed higher education in Bulgaria for 2022 is 33.8%, which is below the average for EU (42.0 %).

For 2023, an improvement in the index is observed. According to National Statistical Institute data as of 15th March, 2024, it is 35.8%, with the relative share of male graduates being 28.7% and female graduates being 43.3%.

Due to the predominance of small and medium-sized enterprises in the national economy, there are difficulties in consolidating general requirements for curricula.

- Please elaborate. Brief quantitative information may be added.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to "ensure inclusive and equitable quality education and promote lifelong learning opportunities for all", target 4.6 specifically calls on states to "ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy".

Furthermore, under target 4.4, states are called "to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life."

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (*several items may be ticked*):

- ☒ Provision of education for persons who have not received or completed the entire period of their primary education
- ☐ Provision of literacy programs
- ☒ Provision of continuous learning (such as learning programs to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☐ Provision of free of charge learning opportunities
- ☒ Provision of professional training including reskilling and upskilling programs
- ☒ Recognition, validation and certification of non-formal and informal learning
- ☐ Provision of free of charge career guidance and counseling
- ☒ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☐ Other:

The Law on Vocational Education and Training (LVET) provides for validation, which is the establishment of the compliance of professional knowledge, skills and competences acquired through non-formal education or informal learning with the state educational standards for acquiring qualifications in professions and recognizing a degree of professional qualification in a profession or a qualification in a part of a profession. The purpose of the validation of professional knowledge, skills and competences is to facilitate access to training for the acquisition of a professional qualification and access to the labor market. Validation is carried out by professions and specialties included in the List of professions for vocational education and training, which is approved by the Minister of Education and Science. The normative grounds for conducting validation are listed in Art. 40 of the Law on Vocational Education and Training, Chapter Eight of the Law on Preschool and School Education and Ordinance No. 2 of 13.11.2014 on the terms and conditions for validating professional knowledge, skills and competencies of the Minister of Education and Science.

The Law on Amendments and Supplements to the Law on Vocational Education and Training (LAS to the LVET), promulgated with issue No. 27 of the State Gazette of 29.03.2024, provides for training to achieve individual learning outcomes in the vocational training system for persons over the age of 16, as an opportunity for flexible and gradual acquisition of knowledge, skills and competences corresponding to the measured results from education in the state educational standards.

Vocational training opportunities are being expanded for persons over 16 years of age by regulating distance learning in an electronic environment.

The possibilities for validation of professional knowledge, skills and competences are specified by regulating that the process includes at least one unit of learning outcomes.

- Please elaborate further on the measures taken:

The field of school education settles public relations on the possibilities of validating competences in non-formal education and informal learning as part of the widely understood educational process. Independent, individual, remote and combined forms of education are being developed. The goal is to provide more opportunities for access to education for different categories of persons and prevention of dropping out and early leaving the education system - section VI and chapter VIII of the LPSE.

- What challenges were encountered in realizing adult learning and education?

☐ Limited access

☐ Issues of equity and inclusion

☐ Poor quality programs

☐ Other:

☐ Limited funding

☐ Poor learning outcomes

☒ Low number of professionally trained educators

A policy area where the observed indicators signal a need for assessment and potential remedial action is adult learning – given the further decline (from already very low levels) in the proportion of adults participating in learning. The figures show that the relative share of adults who participated in learning in the last four weeks for 2022 was 2.01%, which is significantly below the EU average (11.9%). According to this indicator, we are lagging behind in development.

One of the challenges in adult education is the low number of professional training of trainers specializing in andragogy. The reason is the presence of a small number of university programs that prepare such specialists.

- Please elaborate. Brief quantitative information may be added.

According to National Statistics Institute data as of 15th March, 2024, the relative share of the population (aged 25-64) participating in education and training in 2023 is 1.4%, including: men - 1.3 % and women – 1.6 %.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to "build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all".

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ☐ State monitoring and inspections
- ☐ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☐ Infrastructure
- ☐ Curriculum
- ☐ Student-teacher ratio
- ☐ School fees (if relevant)
- ☐ Other

In recent years, sustainable policies aimed at the prevention and intervention in case of violence and bullying and at creating a supportive and safe educational environment have been implemented. The prevention of violence and bullying in schools and kindergartens and the creation of a safe educational environment require the implementation of a comprehensive and systematic approach, which can be achieved by engaging and developing the entire educational community.

MES provides conditions for countering harassment and violence in educational institutions through:

- implementation of activities helping to increase the number of psychologists and pedagogical advisors.
- provision of psychological support to educational institutions to deal with cases of aggression and violence and to overcome crisis situations.
- conducting supervision and training of the members of the National Mobile Group for psychological support.
- monitoring of the implementation of the Mechanism for countering bullying between children and students at school.
- implementation of activities under the National Program "No aggression for a safe educational environment". The program envisages activities to support parents within the framework of the developed overall Program for building a safe educational environment "Steps together", which are carried out in kindergartens and schools. The activities under Module 2 "A school without aggression for a safe school environment" from the National program "Support for the personal development of children and students" - 2023 are implemented by 32 schools, and they will continue to be implemented until June 2024. With the approved financing the projects of these schools will involve 11,984 students, 1,066 teachers and 6,135 parents.

In the system of professional education and training, the State Educational Standard (SES) for acquiring a qualification in a profession contains the requirements for the material and technical base necessary for training in the relevant profession. Pursuant to the LVET and LPSE SES are approved by Regulations of the Minister of Education and Science in coordination with line ministries and nationally representative employer organizations.

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

--

- What challenges were encountered in realizing quality education?

☐ Non-supportive or inadequate learning environments

☐ Violence in schools

☐ Cost of education

☐ Conflicts or crises

☐ Other:

☐ Low quality educational infrastructure and materials

☐ Inadequate parental support to education

☐ Long distances to schools

- Please elaborate. Brief quantitative information may be added.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to "substantially increase the supply of qualified teachers".

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

☒ Teacher training is provided without discrimination.

☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).

☒ Initial training and continuous professional development are provided.

☒ Minimum standards and qualifications required for the teaching profession.

☐ Measures taken to strengthen the social status and attractiveness of the teaching profession.

☐ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.

☒ Establishment of performance monitoring systems.

☐ Measures taken to increase women in leadership positions in education.

☐ Other:

- Please elaborate on each of the measures taken:

The implementation of the main priorities in the national policy regarding the qualification of teachers, together with other policies of the Ministry of Education

and Science, contribute to increasing the authority and social status of pedagogical specialists.

The main measure to increase the social status of teachers is the income policy - the increase in the remuneration of pedagogical specialists.

The main emphasis is on raising the social status of the Bulgarian teacher, providing conditions for qualification and career development of pedagogical specialists and providing the educational system with motivated teachers. In this regard, the measures to maintain the level of teachers' salaries at 125% of the average remuneration in the country, to update the salaries of principals and other specialists in the school system, to raise the salaries of those working in kindergartens and nurseries (pedagogical staff and specialists, assistant educators and other non-pedagogical staff) are all essential. Pursuant to the Collective Labor Agreement for the system of preschool and school education, signed on 28.12.2023 by the Minister of Education and Science and social partners, teacher salaries have been increased by 8.4%, starting from 01.01.2024. The minimum basic salary of teachers and all other pedagogical specialists - resource teachers, educators, heads of the "Information and Communication Technologies" department, speech therapists, psychologists, pedagogical advisors, tutors, choreographers, hearing and speech rehabilitators and sports coaches in schools and kindergarten costs 1,853 BGN. The minimum basic salary for senior teachers and senior educators becomes BGN 1911, and for head teachers and head educators - BGN 1985. The increase covers more than 92,000 teachers working in state and municipal educational institutions. Measures aimed at increasing the income of pedagogical specialists contribute to increasing the prestige of the teaching profession.

Dynamic changes in the public environment require a change in the role and competences of pedagogical specialists through continuous improvement of qualifications in the pedagogical and specific subject area.

Professional, social and personal support for teachers, principals and other pedagogical specialists is a condition for forming motivation for realization in the teaching profession and striving for professional development.

Achieving high quality is related to the level of training of pedagogical specialists working in the system of preschool and school education, the need for additional professional qualification and continuing education as part of lifelong learning.

For the period 2021 - 2024, the Decision of the Council of Ministers approved national programs, including: activities for continuing qualification of pedagogical specialists; for additional professional qualification of teachers employed in the preschool and school education system; to support newly appointed teachers and principals; conducting professional forums and conferences for motivation and exchange of pedagogical experience; methodical support and building of professional communities; participation in teacher programs under international agreements to which the Republic of Bulgaria is a party. National programs are one of the highlights of the national policy for improving the quality and effectiveness of education and training through motivation and continuing qualification of pedagogical specialists, providing a systematic approach to the professional development of teachers, principals and other pedagogical specialists from support to competence development them through continuing qualification.

National program "Qualification" 2021 - trained pedagogical specialists and participants in conferences - a total of 8041, of them 60 participants in one-year trainings to acquire an additional professional qualification "teacher of religion".

National Program "Motivated Teachers" 2021

Module 1 "Activities aimed at teachers new to the system (with or without acquired professional qualification "teacher") with a view to providing pedagogical specialists in schools with a permanent shortage of such" - a total of 94 participants;

Module 2 "Activities aimed at acquiring additional professional qualification "teacher of..." and "resource teachers" by teachers employed in the system" - 98 teachers;

Module 3 "Acting teachers and specialists with higher education without previous teaching experience and/or qualification, who demonstrate motivation and attitudes for working in a challenging environment, as well as with students with low educational results" - 25 participants.

National program "Motivated Teachers and Qualification" 2022

Module 1 "Training of specialists new to the school education system to acquire the professional qualification "teacher" and preparation for their inclusion in the educational process in schools with a shortage of specialists" - included 54 participants;

Module 2 "Training of pedagogical specialists employed in the system of preschool and school education to acquire additional professional qualification "teacher of...", "resource teacher" and "religion teacher" - 82 participants included;

Module 3 "Upgrading training of specialists with higher education with the qualification "teacher" without previous professional experience as teachers for their inclusion in the educational process in schools working with a predominant number of children from vulnerable groups" - included 36 participants;

Module 4 "Continuing qualification for teachers, principals and other pedagogical specialists, research, forums and conferences" - 5773 pedagogical specialists.

National Program "Qualification of Pedagogical Specialists" 2023

Module "Support of newly appointed teachers and principals and continuing qualification to increase the competences of teachers, principals and other pedagogical specialists" - trained 7,032 pedagogical specialists;

Module "Acquisition of professional qualification "teacher of...", as an additional professional qualification of teachers employed in the preschool and school education system" - 77 teachers included;

Module "International cooperation in the field of the qualification of pedagogical specialists - training under international agreements for teacher training" - 76 teachers.

National Program "Qualification of Pedagogical Specialists" 2024

Module 1 "Support of newly appointed teachers and principals. Continuing qualification to increase the competences of teachers, principals and other pedagogical specialists." Organizing and holding forums and conferences for the presentation of good practices, research analyses, motivation and information about the opportunities for the professional development of teachers, principals and other pedagogical specialists - planned trainings for 3,000 pedagogical specialists;

Module 2 "Acquisition of professional qualification "subject teacher" as an additional professional qualification of teachers employed in the preschool and school education system" - planned participation of a minimum of 75 teachers;

Module 3 "International cooperation in the field of the qualification of pedagogical specialists - trainings under international teacher training agreements" - planned participation of a minimum of 85 teachers.

The Rating System of Higher Education Institutions in Bulgaria has collected and summarized data on nearly 100 indicators that measure various aspects of the

activity of higher education institutions, including the learning process, the learning environment, social and administrative services, scientific work, prestige, as well as realization of graduates on the labor market and regional relevance. These indicators are formed on the basis of statistical data collected from various sources, including sociological surveys.

The register of the academic staff in the Republic of Bulgaria is an electronic database with public access, which is maintained by the Ministry of Education and Science through the National Center for Information and Documentation. It contains information about the persons who have acquired the educational and scientific degree "doctor" and/or the scientific degree "doctor of sciences", about the protected dissertation works and about the persons in academic positions in the Republic of Bulgaria.

Medium-term programs for the qualification and retraining of teachers and lecturers are nearing completion, so far 1,500 teachers and lecturers have undergone training under the programs - National program "Increasing the competences of teachers from state higher education institutions preparing future teachers" and National program "Digital qualification".

- What challenges were encountered in the education personnel?

- | | |
|--|---|
| ☐ Shortages of teaching staff | ☐ Low quality educational infrastructure and materials |
| ☐ Lack of qualified, trained and motivated teaching staff | ☐ High student-teacher ratio |
| ☐ Lack of training centers | |
| ☐ Other: | |

In order for educators of adults to teach, they need to be trained first. There are no requirements for training educators of adults.

- Please elaborate. Brief quantitative information may be added.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

☒ Curriculum includes human rights education.

☒ Educational and/or extracurricular activities are organized on human rights education.

☐ Other:

According to Art. 22 of the Higher Education Act, the autonomy of the higher education institution cannot be violated by: 4. carrying out an activity infringing the constitutional rights of the members of the academic community, related to race, nationality, ethnicity, origin, religion, belief, political affiliation.

- Please elaborate on each of the measures taken:

In relation to compliance with the objectives of SDG 4 and especially with 4.7. we can note the identification of the 9th key competence (Skills to support sustainable development and for a healthy lifestyle and sports) and a standard for civic, health, environmental and intercultural education in the LPSE. Through Ordinance No. 13 on civic, health, environmental and intercultural education, in which this standard is implemented, key policies are laid to prevent discrimination in education on various grounds. The main goals in the regulation are aimed at forming an autonomous and active person who understands and defends universal human values, the values of democracy and human rights, participates in civil, political and social life in a responsible, creative and effective way for himself and for society, respects the importance of each human personality in the diversity of their identities, recognizes the

⁴¹Which calls on states to "ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non- violence, global citizenship and appreciation of cultural diversity and of culture's contribution to sustainable development".

right and value of difference, accepts the equality of all in the common social space, is able to make connections between different spheres of public life and understand the causes of social inequalities, environmental and global challenges. The goals are also aimed at the Bulgarian educational institution, which should "affirm a sustainable, inclusive, democratic and healthy environment, free from various forms of aggression and discrimination" and "create a positive educational environment for dialog between representatives of different cultural communities depending on their age and competences, including through the forms of student participation and self-management". According to the cited regulation (art. 15, paragraph 1), educational institutions are obliged to include in their strategy priorities related to civic, health, environmental and intercultural education.

Topics related to intercultural education can be included in the process of acquiring all types of school training, including in elective classes, in interest activities, in class time or in general support activities for personal development in accordance with the order and under the conditions of the Ordinance for inclusive education. The elements of intercultural education are related to the formation of tolerance and respect for different dimensions of socio-cultural identity, to build the key competence in children/students for intercultural dialog, getting to know, understanding and appreciating cultural diversity, as well as in the acquisition of competences for a democratic culture. Pedagogical specialists, at their discretion and depending on the needs of their students, can prepare teaching materials, use resources and conduct initiatives related to intercultural learning and understanding of diversity, democratic rights and values, etc. In accordance with these goals, educational institutions prepare and approve school policies related to intercultural education.

The curricula do not contain negative stereotypes and prejudices. During their creation and optimization, the aspiration to include in them (in view of the specifics of the program) the cultural achievements and way of life of the various ethnic groups living in Bulgaria is noticeable. Issues related to human rights education are explicitly present in programs in the social sciences and humanities. There is such an increased emphasis in the curricula of civic education, philosophy, history and civilizations, geography and economics, man and society. In the other curricula, human rights are not so much present through topics and concepts, but they are woven into the expected results. In class and in extracurricular activities, there are also forms of civic education and human rights. For example, Bulgaria is the initiator of a student Olympiad in civic

education, in which the problems of discrimination and human rights have their significant presence.

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴².

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☒ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴³ explicitly apply to non-state educational institutions. Please specify:

State and private higher education institutions are established, function and are closed according to uniform laws - the Law on Higher Education, the Law on the Development of the Academic Staff in the Republic of Bulgaria, etc.

According to Art. 35 of the LPSE kindergartens are municipal or private.

According to Art. 36 of the LPSE schools are state, municipal, private or religious.

According to Art. 40 (1) of the LPSE kindergartens and schools that are established by individuals and/or legal entities such as commercial companies, non-profit legal entities or cooperatives or as companies under the legislation of a member state are private.

According to Art. 41. (1) of the LPSE religious schools may be opened for the needs of religious denominations. (2) Religious schools are schools opened at the request of religious institutions, registered under the conditions and in accordance with the Law on Religious Denominations. Students who have acquired primary education can be trained in them.

Private and religious schools function according to the LPSE and all state educational standards.

☐ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). Please specify:

⁴²Private, faith-based, NGOs, community actors.

⁴³See: Article/Paragraph 1(1).

✓ Legal provisions provide for the rights of the parents / legal guardians for providing religious and moral education for their children. [Please specify:](#)

According to Art. 36 of the LPSE schools are state, municipal, private or religious.
According to Art. 41. (1) of the LPSE religious schools may be opened for the needs of religious denominations. (2) Religious schools are schools opened at the request of religious institutions, registered under the conditions and in accordance with the Law on Religious Denominations. Students who have acquired primary education can be trained in them.

☐ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

✓ Registration

✓ State monitoring and inspections

✓ Qualifications of teachers

☐ Health and sanitation

☐ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))

☐ Infrastructure

☐ Curriculum

☐ Student-teacher ratio

☐ School fees

☐ School closures

☐ Other

[- Please elaborate:](#)

A Register has been created for state and private higher education institutions.
State monitoring is for all higher education institutions – both public and private.

On the quality of higher education in state and private higher education institutions, incl. affiliates of foreign higher education institutions and of affiliates abroad of Bulgarian higher education institutions, the competent authority is the National Assessment and Accreditation Agency, which is a specialized institution under the Council of Ministers. For the recognition of diplomas for the purpose of access to the labor market, issued by foreign higher education institutions, as well as for the recognition of diplomas acquired abroad, issued by Bulgarian higher education institutions, the competent authority is the National Center for Information and Documentation. When it concerns a regulated profession, the competent authority is the institution designated for granting/recognizing legal capacity. For the recognition of diplomas acquired abroad for the purpose of continuing studies, the competent authority is the relevant higher education institution.

A Register of institutions in the preschool and school education system of private kindergartens and private schools has been created.

- What challenges were encountered in non-state education provision?

- | | |
|---|---|
| ☐ Low quality educational infrastructure and materials | ☐ Issues in terms of equity and inclusion |
| ☐ Low number of professionally trained teachers | ☐ Weak government regulatory and monitoring capacity |
| ☐ High student-teacher ratio | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

MES cooperates with non-governmental organizations, for example:

- with the Lachezar Tsotsorkov Foundation in the field of Bulgaria's accession to the OECD and developing the emotional and social skills of students;
- with the Media Literacy Coalition - in the field of developing students' digital media skills and developing manuals and methodologies for teachers;
- with the Center for Interethnic Dialogue and Tolerance "Amalipe" - in the field of inclusion of students from vulnerable groups.

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁴.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

✓ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

MES carries out the state policy in the field of education in accordance with the current regulations. It includes the introduction of information and communication technologies (ICT) in the school system; coordinates and implements the activities of national and international programs for the introduction of ICT in the field of education and science; coordinates and is responsible for the creation and updating of e-learning content activities.

According to the Ordinance on State Requirements for Distance Learning (2021), the education at and the management of higher education institutions can be conducted remotely, i.e. through ICT. The organizational regulations of higher education institutions provide for the channels and control for the use of ICT, incl. conducting examinations of the students.

☐ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (eg, informed consent, transparent usage policies , etc.)

☐The regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.

☐Measures to remove barriers to accessing digital content⁴⁵ , including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.

⁴⁴Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

⁴⁵Lack of internet connection, basic infrastructure or devices.

✓ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.

□ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education

□ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.

□ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

The implementation of the aforementioned activities and in relation to UNESCO's Goal 4 is carried out through:

- National program "Information and communication technologies in preschool and school education". The goals of the national program are to provide Internet connectivity to schools and the support network of the regional administrations of education; to provide a modern educational environment that guarantees a unified approach to the application of key competencies in the field of formal education, non-formal education and informal learning; access to cloud ICT educational electronic resources - support through the implementation of modern tools for training, provision and management of cloud services in a hybrid environment; purchase of innovative hardware and modern equipment, construction of new Wi-Fi zones, etc.; software for professional training, software products for administration and management of the learning process for the needs of the education system.

Granted budget for 2023 - BGN 12,500,000.

- 125 kindergartens received one laptop each.
- 1,540 kindergartens are provided with funding for software products for the administration and management of the learning process.
- 1720 municipal and state schools, personal development support centers and centers for special educational support are provided with funding for educational electronic resources and content and software products for administration and management of the learning process.

- 1,564 state and municipal schools, personal development support centers and centers for special educational support and 28 regional departments of education have secured funding for Internet connectivity.

- 69 state and municipal schools are provided with financing for the construction/upgrading of WiFi networks.

- 87 schools have secured funding for the implementation of vocational training software.

- Funding is provided for the technical provision of the educational process for the institutions of the school education system:

- 257 schools - 324 interactive displays,
- 66 schools - 611 laptops with Windows OS,
- 11 schools - 129 laptops with Chrome OS.

- Support and administration of user profiles in the educational system and management of a distance learning environment based on Microsoft 365 and Google Workspace are provided.

- The activity of monitoring and the HelpDesk center of MES is ensured.

- Equipment for the data centers was purchased.

- Funds have been provided for the completion of an innovative digital center

- Materials have been developed to teach students about risks and dangers in the Internet space.

- "Education for Tomorrow" project, financed under the Operational Program "Science and Education for Smart Growth", on which a single electronic platform for educational services and content - *Digital Backpack* - was built. The platform represents the next step of the digitalization of education that has begun and precedes the introduction of personalized learning. With it, all students have access to a repository of digital learning content. The platform enables teachers to create digital learning content themselves - lessons, exercises, tests using a huge volume of available electronic resources - texts, images, interactive presentations, 3D models, video and audio clips, virtual and augmented reality.

All resources in the "Digital Backpack" are available to teachers and students absolutely free of charge, being accessible through their @edu.mon.bg accounts.

The Digital Backpack has the following set of free resources:

- Digital Backpack contains 14,836 educational resources developed by educators and resources provided for free use by various educational resource providers.

- Mozaik built-in tools (integrated into the digital backpack) - 1314 3D models, 1395 interactive tutorials, 231 tools and games; 1163 videos, 4599 images.

- Catalog of educational resources with free access - Project "Education for Tomorrow" - <https://oer.mon.bg> - 10699 items. Open Educational Resources (OER) are available in the repository - it contains complete courses, textbooks and learning materials, including images, videos and documents related to teaching and learning.

Under the "Education for Tomorrow" project, computer modeling/coding interest clubs for students from grades V-XII and collective clubs of various grades have been formed. Interest clubs are additional classes on key digital skills - basic and advanced, in which students from I to XII grade are included. After the successful completion of the activities, the degree of the acquired digital competences of the students is assessed through questionnaires. Approximately 70,000 students have been trained in interest club schools in key digital skills - basic and advanced.

- Project BG05M2OP001-5.001-0001 "Equal access to school education in crisis conditions". The aim of the project was to prevent interruption of the educational process and inclusive education in crisis conditions and to counter the risk of dropping out in a distance learning situation. The planned activities are logically linked to ensure the continuity of the educational process. They were directly related to overcoming the consequences caused by the COVID-19 pandemic and the need for the technical provision of the education system, as well as the provision of conditions for conducting distance learning in an electronic environment. Ensuring full access for all pupils to a virtual classroom during the ongoing pandemic is an important priority. Through the project, equal conditions are ensured for all pupils for the development of digital literacy and quality education in all subjects for all educational stages. The project had a total value of 101,642.48 and a duration of 35 months (until 31.12.2023)

With the amendments to the Law on Vocational Education and Training, promulgated in March 2024, all state educational standards for the acquisition of professional qualifications contain embedded training for the acquisition of digital skills in the "Specific Vocational Training" section.

In the field of higher education, the MES has developed and successfully implemented a National Program for Digital Competence of Teachers, as well as a National Program for Anti-Plagiarism in Higher Schools. On an annual basis, the rectors of state higher education institutions report to the Minister of Education and

Science the results of the construction of new infrastructure to increase professional qualifications in the field of digitization and Industry 4.0; for the upgrading of the used electronic platforms and other modern educational technologies both for training and for evaluating and controlling its results; for the provision of systematic technological training to assist teachers in the acquisition of basic and additional technologies for teaching and research; for increasing the share of curricula with integrated e-learning.

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|--|--|
| ☐ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways | ☐ Limited access to internet and/or electricity |
| ☐ Lack of equity and inclusion in digital learning solutions | ☐ Limited access to hardware (devices, chargers, etc.) |
| ☐ Inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks | ☒ Difficulty in regulating the use of digital education solutions |
| ☐ Other: | ☒ Difficulty in sustainably financing digital education solutions at national scale |
| | ☒ Lack of digital skills development for meaningful use of digital technology in teaching practice |
| | ☐ Disjointed or fragmented solutions that are not centrally systematized or regulated |

- Please elaborate. Brief quantitative information may be added.

Digital media literacy (DML) is part of the basic competences that should be acquired in the process of school education. In terms of content, it includes a complex of competencies, among which confident mastery and active use of existing media, critical attitude to the quality and correctness of content, informed judgment and creative use of media to create, distribute and manage information while taking into account the problems of copyright law and the protection of personal data, etc.

That is why DML finds a place in the form of expected learning outcomes both at the level of state educational standards - for civic education and for general education preparation, as well as through the curricula of a number of study subjects, among which computer modeling and information technology. DML is also worked on during

special hours during class time from grade IV to grade XI inclusive. Through the curricula, educational activities have been proposed for its integration into the other subjects.

So for example in computer modeling, students in grades III-IV get to know the place and role of information in modern society and learn the conditions for safety in a digital environment, and in computer modeling and information technology in grades V-VII, they improve their skills in knowing and following the rules for safe behavior on the Internet, to observe ethical rules in electronic correspondence, to respect the copyright of the finished materials they use, to correctly cite the information sources.

The training for obtaining DML continues in the first high school stage, when in information technology students work on the topics "Computer networks and services", "Information culture" and "Team development and protection of a project" and acquire competencies to apply adequate techniques for critical and systematic filtering of information, to know the different ways in which digital technologies affect human health and methods of prevention, to know the impact of digital technologies on the environment. Those who choose targeted training in the field of information technology, in the last two years, develop on a higher level critical thinking, teamwork, communication, social-emotional and ethical skills, which supports the prevention of aggressive behavior, alienation, exposure to risk from terrorism, the abuse of personal data, interference and the imposition of negative models on a personal and moral level, desocialization and others.

Through civic education, efforts are being made to raise awareness of the role of the media and the global network in public life and the possibilities of critical publicity to counteract media manipulations and political populism.

Media literacy is a policy that goes beyond the role and commitments of MES regarding the implementation of national strategic priorities in this area. Although MES is an active party in terms of integrating media literacy in education , its consideration as an element of the functional literacy of the person requires inclusion in a number of cross-sectoral policies, as part of the future national strategy developed in response to the EC Decisions "Digital Decade".

MES is an official partner of the Media Literacy Coalition, which has prepared sample packages with developed lesson plans and programs for inclusion in Media

Literacy Days. The packages cover the entire educational cycle – from I to XII and can be found on the Media Literacy Coalition website.

The Media Literacy Coalition works actively and consistently to advance the qualifications of teachers in the area of media and digital literacy. Within various projects, the organization develops educational activities, creates and adapts resources, builds partnerships with local municipalities, libraries, schools, and other organizations of the civil sector.

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

☐ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.

☐ Monitoring results are made public. Please provide the link:

☐ Monitoring processes are participatory, inclusive and regular.

✓ Sector-wide and multisector approach is adopted to education governance.

☐ Financial resources are effectively allocated to prioritize the provision of free, quality, public education and are adequately budgeted for in government plans.

✓ The decision-making process for the allocation of resources to education is transparent.

✓ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.

☐ There is a certain degree of decentralization in favor of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

To carry out the inspection, pursuant to Art. 274, para. 1 of the LPSSE, the National Inspectorate of Education (NIE) was established and functions as a legal entity on budgetary support by the Council of Ministers. The Director of the NIE is a state official and is appointed and dismissed by the Prime Minister.

The Director of the NIE provides the assessment and guidelines of the inspection to the director of the kindergarten or school and to the head of the relevant regional education department.

The NIE website, <https://nio.government.bg/>, describes the manner and procedure by which the inspection is carried out, as well as additional information related to normative and strategic documents.

According to the regulation in Art. 252, para. 4 of the LPSSE, the regional education administrations provide methodological support for the implementation of the guidelines of the NIE.

The obligations of local self-government bodies regarding the preschool and school education system are regulated in Art. 256 of the LPSE.

In the field of vocational education and training (VET) in 2023, MES established Sectoral Skills Councils (SSC). They represent all interested parties – employers' organizations, organizations of workers and employees from a given sector, businesses, associations of vocational high schools in the relevant sector, other VET providers, universities, etc. Through the SSC and the application of the sectoral approach, a match between the qualifications and the skills sought in the labor market is ensured. Main functions of the SSC:

- Development of proposals for the new list of professions in close cooperation with other interested parties, taking into account the needs of the labor market;
- Review and approval of the developed study and exam content - state educational standards, national exam programs, study plans and study programs - before their submission to MES for approval according to the legally established procedure;
- Development of competence profiles of teachers and professors of vocational training in profession-specific skills;
- Review and approval of the created digital educational content for vocational training;
- Development of modular training programs for vocational teachers.

The Regional Directorates of Education (RDEs) are territorial administrations

under the Minister of Education and Science for management and control of the preschool and school education system.

RDEs supervise the implementation of the implemented state policy and the achieved training results. RDEs also provide methodological support to kindergartens, schools, regional centers for supporting the process of inclusive education and personal development support centers in the relevant area.

On the kindergarten and school level the LPSE also introduces the functioning of a public council to the kindergartens and the schools, as a body for supporting the development of the kindergarten and the school and for civil control of their management.

According to Art. 269 of the LPSE the Public Council:

- approves the strategy for the development of the kindergarten or school and accepts the director's annual report on the implementation; and
- participated in a discussion of the choice of school uniforms;
- proposes policies and measures to improve the quality of the educational process;
- gives an opinion on the distribution of the budget by activities and the amount of capital expenditures, as well as on the report on its implementation;
 - approves the school curriculum;
 - agrees on the teachers' choice of textbooks and study sets;
 - notifies the competent authorities when, in carrying out its activity, it finds violations of the normative acts;
- gives an opinion on the school admission plan under Art. 143, para. 1;
- participates in the creation and adoption of a code of ethics of the school community.

Kindergartens and schools publish the spending of their budgets on their websites.

- What challenges were encountered in terms of governance?

- | | |
|--|---|
| ☐ Budgetary constraints | ☐ Absence of supportive/inconsistent/obsolete legal and policy environment |
| ☐ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels | ☐ Lack or weakness of monitoring systems – including the lack of reliable data |
| ☐ Poor dialogue with teachers' trade unions | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

☒ Translation of the Convention/Recommendation into the national and possibly local languages

☒ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources

☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

☐ Other: